

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

**2025CLBC047370: MINOO AZARPAY, TRUSTEE OF THE DORRANI FAMILY
TRUST vs DAVID RAFAEL GUTIERREZ, et al.
09/17/2026 in Department 43
Motion to Strike Portions of Cross-Complaint**

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Minoo Azarpay, individually and as Trustee of the Dorrani Family Trust's Motion to Strike Portions of Cross-Complaint

Tentative Ruling: The unopposed Motion to Strike Portions of Cross-Complaint is VACATED. A request for dismissal of "The Dorrani Family Trust" from the cross-complaint was filed on September 15, 2026.

Moving counsel is admonished for not engaging in an effective or sufficient meet and confer process prior to filing this motion. The declaration of moving counsel states a single email was sent on July 17, 2026. No further effort was made to resolve the issue prior to or after the filing of this motion. The meet and confer process "requires that there be a serious effort at negotiation and informal resolution...[It] entails something more than bickering with [opposing] counsel...[Instead] the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate." (*Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431. Emphasis added.) The effort in this case was superficial at best. The trust was ultimately dismissed

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before the hearing, suggesting that had a meaningful effort been made, the motion would not have been necessary.